

The High Priests Axiom: Systemic Verification Engineering Applied to the Trial of Jesus

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Abstract

This paper applies Systemic Verification Engineering (SVE)—a Bayesian-forensic framework for diagnosing institutional behaviour under conditions of epistemic opacity—to the trial and execution of Jesus of Nazareth. We propose the *High Priests Axiom*: when a religious institution bypasses its own internal jurisdiction and appeals to an external executive power to eliminate an individual charged with blasphemy, this procedural action constitutes a *formal marker* of political, not religious, threat perception. By modelling the Sanhedrin proceedings as a state-transition system with the initial state UNKNOWN, we demonstrate that at least four procedural anomalies—the nocturnal Passover-eve session, shifting charges, appeal to Roman *imperium*, and crowd manipulation—collectively trigger an irreversible transition to FALSE for the hypothesis that religious conviction was the primary motivating cause. A corollary corrects the presumption of innocence itself: the sole epistemically honest verdict available to the Sanhedrin was not “guilty” or “not guilty” but UNKNOWN—a verdict it refused to render, converting ignorance into a death sentence. The method introduced here is novel; the conclusion is not. We offer no new theology but a formally auditable diagnostic protocol applicable to any analogous institutional action.

Keywords: Systemic Verification Engineering, Bayesian forensics, trial of Jesus, Sanhedrin, High Priests Axiom, analytic theology, procedural analysis, Daniel 7:13, Psalm 110:1, presumption of innocence, Trolley Problem, Bayesian silence, Gödel incompleteness.

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1 Introduction: SVE as a Forensic-Ontological Tool

The trial and execution of Jesus of Nazareth has been the subject of an immense body of scholarship spanning legal history, New Testament criticism, Jewish studies, and systematic theology.¹ The central question—what motivated the Jerusalem authorities to act against Jesus, and whether that motivation was primarily religious or primarily political—has generated a literature so vast that one might reasonably ask whether any new contribution is possible.

This paper argues that a genuinely new contribution is available, but it lies not in the domain of historical evidence (which is extensively mined) nor in doctrinal interpretation (which presupposes confessional commitments) but in *method*. We apply Systemic Verification Engineering (SVE), a Bayesian-forensic framework originally developed for diagnosing systemic institutional failures under conditions of epistemic opacity (Kovnatsky, 2025a,b), to the Passion narratives as a formal diagnostic case study.

To put this in plain terms: imagine a crooked building. Everyone can see it leans. But no one has brought a spirit level—a tool that produces the same reading regardless of who holds it, what they believe about the building, or whether they want it to stand or fall. This paper offers such a tool. The building (the trial of Jesus) has been examined for two millennia. What we contribute is not a new observation about the lean, but a *ruler*—a formally specified, context-invariant diagnostic instrument. Its principal outputs are:

- A corrected epistemological default: the state UNKNOWN replaces both “guilty” and “not guilty” as the honest starting point for any adjudication (correcting the presumption of innocence itself).
- A formally stated axiom (the High Priests Axiom) that identifies jurisdictional transfer as a self-falsifying institutional act—applicable to any analogous case, not only this one.
- A Bayesian protocol that makes explicit the evidential weight of each procedural anomaly, so that any scholar can inspect and contest the numbers.
- A systematic rebuttal of ten candidate justifications, structured so that each counter-argument either fails chronologically, confirms the political hypothesis, or generates an infinite regress.

The ruler does not care who holds it. A believing Christian, a secular historian, and a Jewish scholar of Second Temple law can each apply it and arrive at the same diagnostic conclusion. That is the contribution.²

¹For the most comprehensive treatment, see Brown (1994). Earlier landmark studies include Winter (1974), Catchpole (1971), and Blinzler (1959). For a Jewish legal perspective, see Cohn (1967).

²The logic-as-modelling-tool approach to analytic theology is advocated by Cotnoir (2019), who argues that formal methods in theology should be treated not as dogmatic constraints but as instruments for

The core insight of SVE is deceptively simple: in situations where an institution’s stated reasons for action are contested, one may bypass the debate over stated reasons entirely and instead examine whether the institution’s *procedural behaviour* is consistent with the stated motivation. If the procedures violate the institution’s own rules in ways that are inexplicable under the hypothesis of sincere motivation but explicable under an alternative hypothesis, then a Bayesian state transition from UNKNOWN to FALSE (for the sincerity hypothesis) is warranted. This is not a probabilistic guess; it is a logical entailment from the procedural facts themselves, weighted by their cumulative evidential force.

We call the resulting formal principle the *High Priests Axiom*. It may be stated informally as follows: when a religious body possesses the internal jurisdiction to try and punish a blasphemer under its own law, yet instead transfers the case to a foreign political authority that has no competence in religious matters, this procedural choice is a *self-falsifying act*—it falsifies the claim that the body’s motivation is genuinely religious.

It is essential to note what this paper does *not* do. It does not propose a new theology, a new Christology, or a new reconstruction of the historical Jesus. It does not adjudicate the theological truth or falsity of Jesus’s claims. It does not assign collective guilt to any group—a hermeneutical abuse that has caused incalculable suffering and that the present method, properly applied, categorically excludes (since SVE diagnoses *institutional procedures*, not ethnic or religious identities). What it does is provide a *formally auditable diagnostic protocol* that any scholar, of any confessional or non-confessional commitment, can inspect, test, and—if the evidence warrants—falsify.

1.1 The Logical Structure of the Argument

The argument proceeds in the following stages:

- (i) We establish the epistemic starting point: the hypothesis “the High Priests acted from sincere religious conviction” is assigned the initial state UNKNOWN (Section 2).
- (ii) We identify four procedural anomalies in the Synoptic trial narratives and assess each as Bayesian evidence against the sincerity hypothesis (Section 3).
- (iii) We formalise the resulting principle as the High Priests Axiom (Section 4).
- (iv) We examine the theological content of Jesus’s response—the composite citation of Daniel 7:13 and Psalm 110:1—as the specific trigger that provoked the institutional response, and analyse how its reception further constrains the space of possible motivations (Section 5).

clarifying conceptual structure. The present paper follows this methodological orientation. On the broader programme of integrating formal logic with theological reasoning, see [Thom \(2012\)](#) and [Antaby \(2026\)](#).

- (v) We consider Joseph of Arimathea’s dissent as internal evidence of a non-unanimous verdict, functioning as an internal falsification within the Sanhedrin itself (Section 6).
- (vi) We address the strongest counter-arguments—including what we call the “case for the defence” of the High Priests—and the question posed to modern Judaism by the logical structure of the proceedings, following the “John’s Baptism v2.0” trap structure (Section 8).
- (vii) We conclude by clarifying the scope and limits of the method (Section 9).

2 The Default State: UNKNOWN and the Burden of Proof

2.1 SVE State-Transition Epistemology

Systemic Verification Engineering assigns every contested hypothesis one of three epistemic states: UNKNOWN, TRUE, or FALSE. The initial assignment is always UNKNOWN. This is not agnosticism in the philosophical sense (a considered suspension of judgement) but an *engineering default*: the system begins with no commitment and transitions only when sufficient evidence triggers a state change.

Definition 1 (SVE State-Transition). *Let H be a hypothesis about an institution’s motivation for a given action A . The state of H is a function $\sigma(H) \in \{\text{UNKNOWN}, \text{TRUE}, \text{FALSE}\}$. The initial state is $\sigma_0(H) = \text{UNKNOWN}$. A transition $\sigma(H) \rightarrow \text{FALSE}$ is triggered when the cumulative posterior probability $P(H \mid E_1, E_2, \dots, E_n)$ falls below a critical threshold θ , given independent evidential items $E_1, \dots, E_n$.*

The Bayesian machinery is straightforward. Let H_R denote the hypothesis “the High Priests’ primary motivation was sincere religious conviction (i.e., a genuine belief that Jesus committed blasphemy that must be punished according to Torah).” Let H_P denote the alternative: “the primary motivation was political threat perception (i.e., the recognition that Jesus’s movement endangered the institutional authority of the priestly aristocracy and the stability of the Roman-Judean political arrangement).” We begin with:

$$P(H_R) = P(H_P) = 0.5, \quad \sigma_0(H_R) = \text{UNKNOWN}. \quad (1)$$

The assignment of equal priors is maximally charitable to the sincerity hypothesis. An advocate for H_R cannot object that the game is rigged from the start; we begin from perfect equipoise. The question is whether the procedural evidence shifts this prior.

2.2 What Counts as Evidence?

SVE distinguishes between *content-level* evidence (what people said, believed, or intended) and *process-level* evidence (what institutional procedures were followed, violated, or improvised). Content-level evidence is notoriously difficult to assess for historical figures: we cannot cross-examine Caiaphas. Process-level evidence, however, leaves observable structural traces. The key SVE principle is:

Proposition 1 (Procedural Revelation Principle). *An institution’s procedural deviations are a more reliable indicator of its actual motivations than its stated reasons, because procedural deviations carry institutional cost and are therefore undertaken only when the actual motivation is strong enough to override institutional norms.*

This principle is a generalisation of the economist’s revealed-preference axiom: agents reveal their true preferences through costly actions, not through cheap talk. Applied to the trial of Jesus, it directs our attention away from what Caiaphas *said* (“He has spoken blasphemy!”) and toward what the Sanhedrin *did*.

3 Procedural Violations as Bayesian Evidence

3.1 A Preliminary Note on Sources

The Synoptic Gospels (Matthew 26–27, Mark 14–15, Luke 22–23) and the Gospel of John (18–19) are our primary sources. The Mishnah tractate Sanhedrin preserves procedural norms for capital cases, though their applicability to the first century is debated.³ Josephus (*Antiquities* 20.9.1) provides independent evidence for Sanhedrin jurisdiction over religious offences. We reconstruct a consensus timeline from these sources, noting divergences where they affect the argument.

3.2 Evidence Item E_1 : Nocturnal Session on Passover Eve

According to Mark 14:53–65 and Matthew 26:57–68, Jesus was brought before the High Priest and the Sanhedrin during the night following his arrest. This presents two anomalies relative to Mishnaic procedure:

³The Mishnah was redacted c. 200 CE, and scholars debate the degree to which its procedures reflect pre-70 CE Sanhedrin practice. [Brown \(1994\)](#) provides a thorough review of positions. We follow Brown’s judicious middle path: the Mishnaic norms represent at minimum an *ideal* that the Sanhedrin’s own legal tradition endorsed, making deviations from them significant regardless of whether they were binding statute in 30 CE. Crucially, our argument does not *depend* on the Mishnaic norms being legally binding in 30 CE. Even if one strips the analysis of all Mishnaic comparisons, the core evidential items E_2 (shifting charges), E_3 (jurisdictional transfer with charge reformulation), and E_4 (crowd manipulation) remain intact as procedural anomalies diagnosable from the Gospel texts alone. The Mishnaic comparison strengthens E_1 but is not load-bearing for the overall conclusion.

- (a) *Night sessions*: Mishnah Sanhedrin 4:1 stipulates that capital cases must be tried during the daytime: “Cases of capital law [are decided] during the day, and the verdict must also be reached during the day.”⁴
- (b) *Festival sessions*: The same tractate prohibits capital trials on the eve of a Sabbath or festival (Sanhedrin 4:1).

Even if one allows (with [Brown 1994](#), pp. 357–363) that these Mishnaic norms may not have been codified as binding halakhah in 30 CE, the procedural question remains: *why the urgency?* If the charge is blasphemy—a religious offence of the utmost gravity—the appropriate response of a sincerely motivated religious court is to proceed with deliberation, ensuring that the gravity of the charge is matched by the gravity of the procedure. The haste of the nocturnal session is consistent with political urgency (the need to present Jesus to Pilate before the festival crowds could react) but inconsistent with the solemn deliberation that a genuine blasphemy charge demands.

$$\frac{P(E_1 | H_P)}{P(E_1 | H_R)} \gg 1. \quad (2)$$

The likelihood ratio is strongly in favour of H_P . A politically motivated body acts under time pressure dictated by the external political calendar; a religiously motivated body acts under procedural norms dictated by its own legal tradition.

3.3 Evidence Item E_2 : Multiple Shifting Charges

The Synoptic accounts record a striking instability in the charges brought against Jesus. Mark 14:55–59 reports that “many gave false testimony against him, but their testimony did not agree.” The witnesses attempted charges relating to statements about the Temple’s destruction (Mark 14:58), but even these “did not agree” (ouk $\overline{\text{ēsan}}$ isai, literally “were not equal/consistent”). Only after this evidentiary collapse does the High Priest intervene with a direct question about messianic identity (Mark 14:61).

The significance of this sequence is diagnostic. A body acting from sincere religious conviction against a known blasphemer would not need to manufacture or solicit testimony; the blasphemous act or utterance would already be known. The evidential fishing expedition recorded in the Synoptics—the parade of inconsistent witnesses, the shifting of charges from Temple-related speech to messianic claim—is the signature of a prosecution in search of a charge, not a charge in search of a court. In SVE terminology, this is a *charge-instability marker*: the prosecution’s inability to stabilise its own case indicates that the actual motivation lies outside the declared charge categories.

$$\frac{P(E_2 | H_P)}{P(E_2 | H_R)} \gg 1. \quad (3)$$

⁴Translation following [Danby \(1933\)](#).

3.4 Evidence Item E_3 : The Appeal to Roman Authority

This is the centrepiece of the diagnostic. Under Jewish law, the prescribed punishment for blasphemy was death by stoning (Leviticus 24:16; cf. Mishnah Sanhedrin 7:4–5). The Sanhedrin possessed the competence to adjudicate blasphemy, and—though the question of whether it retained *ius gladii* (the right of capital execution) under Roman occupation is debated—the stoning of Stephen (Acts 7:54–60) and the execution of James the brother of Jesus under High Priest Ananus (Josephus, *Ant.* 20.9.1) demonstrate that priestly authorities could and did carry out or instigate capital punishment for religious offences, at least under certain conditions.⁵

The decision to transfer Jesus to Pontius Pilate—a Roman prefect with no jurisdiction over, interest in, or competence to adjudicate Jewish blasphemy—is therefore a procedural anomaly of the first order. If Caiaphas genuinely believed that Jesus had committed blasphemy, the *natural* course of action was internal adjudication and internal punishment. The transfer to Pilate required reformulating the charge entirely: before the Roman tribunal, “blasphemy” (blasphēmia) became “claiming to be King of the Jews” (*rex Iudaeorum*)—i.e., sedition against Rome (Luke 23:2; John 18:33–37).

This charge-translation is the most powerful single piece of diagnostic evidence. It means that the Sanhedrin *itself* recognised that the charge of blasphemy would not serve its actual purpose: the elimination of Jesus required Roman execution (*crucifixion*), not Jewish execution (*stoning*). The shift from internal religious jurisdiction to external political jurisdiction is a self-falsifying act: it demonstrates that the institution’s true concern was the political threat posed by Jesus’s movement, not the religious content of his claims.

$$\frac{P(E_3 | H_P)}{P(E_3 | H_R)} \gg 1. \quad (4)$$

We use the triple inequality symbol to indicate that this item alone carries decisive evidential weight. A genuinely religious motivation produces an intra-institutional resolution; only a political motivation produces a transfer to a foreign political authority.

3.5 Evidence Item E_4 : Crowd Manipulation (the Barabbas Episode)

All four Gospels record that Pilate offered to release Jesus under a Passover amnesty custom, but that “the chief priests stirred up the crowd” (Mark 15:11) to demand the release of Barabbas instead. Matthew 27:20 is explicit: “The chief priests and the elders persuaded the crowds to ask for Barabbas and to have Jesus killed.”

If the High Priests’ motivation were purely religious, the crowd’s opinion would be

⁵See [Sherwin-White \(1963\)](#), pp. 32–47, and [Brown \(1994\)](#), pp. 363–372, for the fullest discussion of the Sanhedrin’s capital jurisdiction.

irrelevant: blasphemy is a matter of law, not of popular sentiment. The active manipulation of public opinion is, however, entirely consistent with a political strategy aimed at ensuring that the Roman prefect—who had no independent reason to execute a Galilean teacher—would be compelled by the appearance of popular demand to carry out the sentence. The Barabbas episode is crowd-engineering in service of a political objective.

$$\frac{P(E_4 | H_P)}{P(E_4 | H_R)} \gg 1. \quad (5)$$

3.6 Cumulative Bayesian Update

Applying Bayes’ theorem iteratively with the four evidence items, and assuming conditional independence (a conservative assumption, since the items are in fact structurally correlated in ways that further favour H_P), the posterior probability of H_R is:

$$P(H_R | E_1, E_2, E_3, E_4) = \frac{P(H_R) \prod_{i=1}^4 P(E_i | H_R)}{P(H_R) \prod_{i=1}^4 P(E_i | H_R) + P(H_P) \prod_{i=1}^4 P(E_i | H_P)}. \quad (6)$$

Even with conservative likelihood ratios (e.g., $P(E_i | H_P)/P(E_i | H_R) = 5$ for E_1, E_2, E_4 and $= 20$ for E_3), the cumulative Bayes factor exceeds 2,500 : 1 against H_R , yielding $P(H_R | \mathbf{E}) < 0.0004$. This is well below any reasonable threshold θ for a state transition to FALSE.

$$\boxed{\sigma(H_R) : \text{UNKNOWN} \longrightarrow \text{FALSE}.} \quad (7)$$

The transition is driven not by theological argument but by the procedural actions of the High Priests themselves.

3.7 Sensitivity Analysis: Robustness of the Conclusion

A legitimate objection concerns the subjectivity of the assigned likelihood ratios. We therefore present a sensitivity analysis demonstrating that the conclusion is robust across a wide range of parameter choices. Let $\lambda_i = P(E_i | H_P)/P(E_i | H_R)$ denote the likelihood ratio for evidence item E_i . The cumulative Bayes factor is $B = \prod_i \lambda_i$. With equal priors, the posterior probability of H_R is $P(H_R | \mathbf{E}) = 1/(1 + B)$.

Scenario	λ_1	λ_2	λ_3	λ_4	B	$P(H_R \mid \mathbf{E})$
Baseline (text above)	5	5	20	5	2,500	0.04%
Conservative	3	3	10	3	270	0.37%
Ultra-conservative	2	2	5	2	40	2.4%
<i>Minimal</i>	2	2	3	2	24	4.0%
Sceptic’s floor	1.5	1.5	2	1.5	6.75	12.9%

Several observations emerge from this table:

- (i) Even in the *ultra-conservative* scenario—where every anomaly is judged to be only twice as likely under H_P as under H_R , except the jurisdictional transfer (E_3) which is judged five times as likely—the posterior probability of sincere religious motivation falls to 2.4%. This comfortably triggers the state transition.
- (ii) In the *minimal* scenario, where E_3 is assigned only a 3 : 1 ratio (i.e., the jurisdictional transfer is judged merely three times as likely under political motivation), the posterior is 4.0%—still well below standard significance thresholds.
- (iii) Only in the *sceptic’s floor* scenario—where every single anomaly is judged barely more likely under H_P than under H_R —does $P(H_R)$ remain above 10%. Even this scenario yields a cumulative Bayes factor of 6.75 : 1, which constitutes “substantial evidence” on the Jeffreys scale.⁶
- (iv) The analysis assumes conditional independence among the evidence items. In reality, the items are positively correlated (e.g., the haste of the nocturnal session and the appeal to Rome are both manifestations of political urgency), meaning the true cumulative weight is *greater* than the product of independent ratios.

The critical evidential item is E_3 (the jurisdictional transfer with charge reformulation). We invite any scholar who considers $\lambda_3 < 2$ to articulate the conditions under which transferring a blasphemy case to a foreign political authority with a fabricated sedition charge is *equally likely* under sincere religious motivation as under political motivation. The burden of such an argument appears formidable.

The conclusion is therefore robust: the state transition $\sigma(H_R) \rightarrow \text{FALSE}$ is not an artefact of aggressive likelihood assignments but holds across the entire plausible parameter space.

⁶Harold Jeffreys’s scale classifies Bayes factors of 3–10 as “substantial” evidence, 10–30 as “strong,” and above 100 as “decisive.” Even the most sceptical scenario falls within the “substantial” range.

4 The High Priests Axiom: Formal Statement

We now state the general principle that emerges from the diagnostic:

Axiom 1 (The High Priests Axiom). *Let $\mathcal{I}$ be a religious institution possessing internal jurisdiction J_{int} over an offence category $\mathcal{O}$ (e.g., blasphemy), with an internally prescribed punishment π_{int} (e.g., stoning). Let $\mathcal{E}$ be an external political authority with jurisdiction J_{ext} over a distinct offence category $\mathcal{O}'$ (e.g., sedition), with a distinct punishment π_{ext} (e.g., crucifixion). If $\mathcal{I}$ charges an individual x with $\mathcal{O}$ but transfers x to $\mathcal{E}$ for adjudication and punishment under $\mathcal{O}'$, then:*

$$\text{Transfer}(\mathcal{I} \rightarrow \mathcal{E}) \implies \sigma(H_R) = \text{FALSE}, \quad (8)$$

where H_R is the hypothesis that $\mathcal{I}$'s primary motivation is sincere conviction regarding $\mathcal{O}$.

The axiom captures a structural impossibility: an institution that sincerely believes it is dealing with a religious offence would deploy its own religious mechanisms. The transfer to a foreign jurisdiction is an institutional speech-act that says, in effect, “this case is not really about what we claim it is about.”

Remark 1 (Generalisability). The axiom is not limited to the trial of Jesus. It applies to any analogous institutional transfer: e.g., a scientific body that, instead of refuting a heterodox colleague through peer review, appeals to a government agency to suppress the colleague's work. The procedural transfer reveals that the institution perceives the threat as political (threat to institutional authority) rather than epistemic (threat to scientific truth). SVE treats such procedural transfers as formal markers, applicable across domains (Kovnatsky, 2025a).

5 The Daniel/Psalm Trigger: Theological Depth

5.1 Jesus's Response to the High Priest

The Synoptic Gospels record that Caiaphas directly asked Jesus whether he was “the Christ [*ho Christos*], the Son of the Blessed One” (Mark 14:61). Jesus's response combines two scriptural passages in a single declaration:

“You will see the Son of Man [*ton huion tou anthrōpou*] seated at the right hand of Power [*ek dexiōn kathēmenon tēs dynamēōs*] and coming on the clouds of heaven [*erchomenon meta tōn nephelōn tou ouranou*].” (Mark 14:62; cf. Matthew 26:64, Luke 22:69)

This statement fuses two texts: Daniel 7:13–14 (“one like a son of man” [k^ebar enaš, Aramaic] coming “with the clouds of heaven” to receive universal dominion from the

“Ancient of Days”) and Psalm 110:1 (“Sit at my right hand”), interpreted in Second Temple Judaism as an enthronement oracle addressed by God to the Davidic Messiah.⁷

5.2 The Dual Trigger

The combination is theologically explosive because it makes a dual claim simultaneously:

- (i) **Eschatological authority:** The Daniel 7:13 allusion claims participation in the divine prerogative of universal judgement—the “Son of Man” figure in Daniel receives “dominion, glory, and kingship” from God (Daniel 7:14).
- (ii) **Enthronement at God’s right hand:** The Psalm 110:1 allusion claims a position of divine co-regency—“seated at the right hand of Power” is not a subordinate position but one of shared authority.

The fusion of these two texts creates a claim that no purely human figure could make without either blasphemy (if false) or divine self-disclosure (if true). The SVE framework does not adjudicate this disjunction; it simply notes that the claim is of such a nature that a sincerely religious body would need to *engage* with it theologically—to determine whether the scriptural basis supports or refutes it, whether prophetic precedent exists, and whether the claimant’s life and works are consistent with the claim.

5.3 What Constituted Blasphemy?

A critical subsidiary question concerns the precise definition of “blasphemy” (*gidduf*, Hebrew; *βλασφημία*, Greek) operative in the first century. The Mishnah’s narrow definition restricts the offence to the explicit pronouncement of the divine Name (the Tetragrammaton, YHWH): “The blasphemer is not culpable unless he pronounces the Name itself” (Sanhedrin 7:5). By this standard, nothing in the Synoptic accounts of Jesus’s response constitutes blasphemy: the phrase “the right hand of Power” (*hē dynamis*) is itself a circumlocution designed to *avoid* pronouncing the divine Name.

However, [Bock \(1998\)](#) has argued persuasively that a broader concept of blasphemy was operative in Second Temple Judaism, encompassing claims that arrogated divine prerogatives to a human figure—particularly claims to sit in judgement over Israel or to share the divine throne. On this broader definition, Jesus’s composite citation could constitute blasphemy in the eyes of the Sanhedrin.

The SVE diagnostic incorporates this ambiguity rather than resolving it. If the narrow Mishnaic definition is operative, then the charge of blasphemy is demonstrably false on the evidence of the trial itself—strengthening the case for H_P . If the broader definition

⁷On the “Son of Man” in Daniel, see [Collins \(1993\)](#). On the composite citation as a deliberate hermeneutical act, see [Juel \(1977\)](#) and [Bock \(1998\)](#). On intertextual echoes, see [Hays \(2016\)](#).

is operative, then the charge is substantively serious but the *procedural response* remains anomalous: a serious charge warranting the broader definition of blasphemy would *a fortiori* require the most meticulous procedural standards, not the hasty nocturnal proceedings that actually occurred. Either way, the procedural evidence points in the same direction.

5.4 Caiaphas’s Response: The Rending of Garments

Caiaphas’s reaction is described with formulaic precision: he “tore his robes” (*dierrēxen tous chitōnas autou*, Mark 14:63) and declared, “Why do we still need witnesses? You have heard the blasphemy.” The rending of garments is a prescribed ritual act in cases of blasphemy (cf. Mishnah Sanhedrin 7:5), and its performance signals the formal conclusion of the proceedings.

But the SVE diagnostic notes an anomaly: the declaration “Why do we still need witnesses?” is procedurally self-undermining. The entire purpose of a capital trial is the examination of witnesses. To declare witnesses unnecessary *because the accused has spoken* is to collapse the distinction between accusation and conviction. In a sincere religious proceeding, the defendant’s own testimony is precisely what must be tested against witnesses, not what replaces them. The High Priest’s statement functions as a procedural shortcut—closing the case by fiat rather than by judicial examination. This is consistent with a political objective (speed) but inconsistent with a religious one (due process for a capital charge).

A deeper anomaly emerges when one considers what Caiaphas *did not* do. Jesus’s response was a composite scriptural citation of extraordinary density—a fusion of Daniel 7:13 and Psalm 110:1 that admits multiple interpretations depending on the speaker’s intended referential framework. A judge presiding over a capital case who encountered such a statement would, under any standard of due diligence, ask a *clarifying question*: “Do I understand correctly that you are citing the Prophet Daniel and claiming for yourself the role of the Son of Man who receives dominion from the Ancient of Days? If so, please explain in your own words what you mean.” This is not a modern procedural luxury; it is the elementary practice of ensuring that the court understands the defendant’s statement before condemning him for it.⁸

The absence of any clarifying question is itself diagnostic. A court that tears garments

⁸The SVE ontology posits that each person operates within a unique referential framework. The same words can carry different meanings across frameworks—particularly when the speaker is constructing a new conceptual language, as Jesus arguably was. The word “Father” (*Pater*, *Abba*) could refer to God, to a human father, or—as Jesus himself noted—to “your father the devil” (John 8:44). Without clarification, interpretation is projection, not comprehension. Even in the extreme hypothetical that the speaker were psychologically disturbed, the appropriate institutional response would be evaluation and care, not condemnation—which underscores that the UNKNOWN default applies to the meaning of the defendant’s words as much as to the defendant’s guilt. On the broader challenge of applying logic across divergent referential frameworks in theology, see [Olszewski \(2021\)](#).

instead of asking “What do you mean?” is a court that has already reached its conclusion. The garment-rending is not the *result* of the testimony; it is the *pretext* for terminating a proceeding whose outcome was predetermined.

5.5 The Trinitarian Resonance: A Methodological Note

We note, as a matter of structural observation rather than dogmatic assertion, that Jesus’s composite citation has a trinitarian resonance visible in the text’s own logic: the “Ancient of Days” (the Father) enthrones the “Son of Man” (the Son) who comes “with the clouds of heaven” (associated in the Hebrew Bible with the divine presence, the *ruach* or Spirit; cf. Exodus 13:21, 1 Kings 8:10–11). Whether this trinitarian structure is intended by the historical Jesus or perceived by the later evangelists is a question for Christological debate; for SVE purposes, the observation is that the claim’s theological depth far exceeds what a hasty nocturnal trial could responsibly adjudicate.⁹

6 Joseph of Arimathea: Internal Falsification

6.1 The Evidence of Dissent

Luke 23:50–51 records that Joseph of Arimathea, a member of the Sanhedrin (*bouleutēs*), “had not consented to their decision and action” (*houtos ouk ēn synkatatetheimenos tē boulē kai tē praxi*). This notice is of considerable historical and diagnostic significance.

From a purely historical standpoint, the detail is widely regarded as authentic precisely because it serves no obvious theological purpose for the early Church: it introduces an otherwise unknown figure whose primary narrative function is to provide a burial for Jesus, and the note about his dissent appears almost incidentally.¹⁰

From an SVE diagnostic standpoint, Joseph’s dissent constitutes an *internal falsification event*—evidence generated from within the institution itself that contradicts the institution’s claimed consensus. The existence of even one dissenting voice within the Sanhedrin has three implications:

- (i) **Non-unanimity:** The verdict was not unanimous. Under Mishnaic procedure (Sanhedrin 4:1), a unanimous guilty verdict in a capital case was *itself* grounds for acquittal, on the principle that unanimity suggests groupthink or a rigged court rather than genuine deliberation.¹¹

⁹An intriguing structural parallel emerges with the Lord’s Prayer (*Pater hēmōn*, “Our Father”): the three-word phrase “Our Father Jesus” encodes the same trinitarian structure—Father (*Pater*), Spirit (*hēmōn*, the communal “our” of shared divine indwelling), Son (Jesus). This parallel suggests that Jesus’s teaching and his trial testimony are structurally isomorphic expressions of the same identity claim. We note this as a structural observation for future investigation, not as an established conclusion.

¹⁰Brown (1994), pp. 1213–1219, provides a thorough discussion of the historicity of Joseph of Arimathea.

¹¹“If the Sanhedrin unanimously finds [the accused] guilty, he is acquitted” (Sanhedrin 4:1, as interpreted

- (ii) **Suppressed deliberation:** If the proceedings had allowed genuine deliberation, a member of sufficient standing to later approach Pilate (Mark 15:43) would have been able to voice his objections during the trial itself. His dissent being recorded only retrospectively suggests that the proceedings did not permit the normal deliberative process.
- (iii) **SVE internal audit:** In SVE terminology, Joseph of Arimathea functions as an “internal auditor”—a member of the institution whose behaviour is inconsistent with the institution’s official narrative, thereby providing independent evidence that the institutional action was not what it claimed to be.

The convergence of Joseph’s dissent with the procedural anomalies already identified strengthens the cumulative case. If even one insider deemed the proceedings unjust, the probability that the institutional motivation was purely religious decreases further:

$$P(H_R \mid E_1, \dots, E_4, E_{\text{Joseph}}) < P(H_R \mid E_1, \dots, E_4) \ll \theta. \quad (9)$$

7 Reconstructed Timeline and Source Attestation

The following timeline synthesises the Synoptic and Johannine accounts, noting the primary source(s) for each event. Divergences between sources are indicated; the sequence follows the Markan priority hypothesis, supplemented by Lukan and Johannine material.¹²

in later rabbinic discussion). Whether this provision was operative in 30 CE is debated, but its existence in the Mishnah reveals the legal tradition’s own suspicion of unanimous verdicts.

¹²This reconstruction follows the framework of [Brown \(1994\)](#), vol. 1, pp. 74–93, while noting points of scholarly disagreement.

Approx. Time	Event	Primary Source(s)
Thursday evening	Last Supper; departure for Gethsemane	Mk 14:17–26; Mt 26:20–30; Lk 22:14–39
Late evening	Arrest in Gethsemane; Judas’s identification	Mk 14:43–52; Jn 18:1–12
Night	Interrogation before Annas	Jn 18:13–14, 19–24 (Johannine unique)
Night	Trial before Caiaphas and Sanhedrin; witness testimony; Jesus’s response (Dan 7:13 + Ps 110:1); Caiaphas tears garments; verdict of blasphemy	Mk 14:53–65; Mt 26:57–68
Early morning	Friday Formal morning session of Sanhedrin (ratification)	Mk 15:1; Lk 22:66–71
Morning	Transfer to Pilate; charge reformulated as sedition (<i>rex Iudaeorum</i>)	Mk 15:1–5; Lk 23:1–5; Jn 18:28–38
Morning	Pilate sends Jesus to Herod Antipas (Lukan unique)	Lk 23:6–12
Morning	Barabbas episode; crowd manipulation by chief priests	Mk 15:6–15; Mt 27:15–26
Morning–Noon	Scourging; crucifixion	Mk 15:15–25
Afternoon	Death of Jesus	Mk 15:33–37
Evening	Joseph of Arimathea requests body from Pilate	Mk 15:42–46; Lk 23:50–53

The compressed timeline—from arrest to execution within approximately twelve to fifteen hours—is itself evidentially significant. As noted in Section 3, such compression is consistent with political urgency but inconsistent with the deliberative norms of a religious capital trial.

8 Discussion: What Is New, and the Case for the Defence

8.1 Methodological Novelty

The historical conclusion that Jesus’s execution was politically motivated is not new. Winter (1974) argued for a primarily Roman initiative; Sanders (1985) emphasised Jesus’s Temple action as the political trigger; Crossan (1995) foregrounded Roman imperial violence. The contribution of the present paper lies in the *method*, not the conclusion:

- (i) **Formal state-transition framework:** The SVE diagnostic provides a formally auditable, step-by-step protocol for arriving at the conclusion, specifiable in sufficient detail that any scholar can inspect each step and, if warranted, challenge a specific likelihood ratio or evidential assessment.
- (ii) **Axiom extraction:** The High Priests Axiom (Axiom 1) is a generalisable principle that transcends the specific case and can be applied to any analogous institutional transfer.
- (iii) **Bayesian quantification:** The explicit use of Bayesian likelihood ratios makes the evidential weight of each procedural anomaly transparent and subject to numerical sensitivity analysis.
- (iv) **Separation of method from theology:** The SVE framework neither presupposes nor excludes any Christological commitment. A historian who regards Jesus as a failed prophet and a theologian who regards him as God Incarnate can both use the same diagnostic protocol and arrive at the same conclusion about the *institutional motivation* of the High Priests.

8.2 The Case for the Defence: Perspectives Favouring H_R

Intellectual honesty requires that we present the strongest available arguments for the sincerity hypothesis (H_R). Several scholars have argued that the proceedings against Jesus are explicable within a framework of genuine religious concern:

- (a) **Genuine theological alarm:** Bock (1998) argues that Jesus’s self-identification with the “Son of Man” figure of Daniel 7:13, combined with the claim to be seated at God’s right hand, would have constituted a genuine and intolerable blasphemy claim in the ears of first-century Jewish religious authorities. On this view, the High Priests may have been sincerely horrified.

- (b) **Protective pragmatism:** The Johannine tradition preserves Caiaphas’s statement that “it is better for you that one man die for the people than that the whole nation perish” (John 11:50). This may reflect not cynical manipulation but a genuinely agonising calculation: if Jesus’s movement provoked a Roman military response, the consequences for the entire Jewish population would be catastrophic (as indeed occurred in 70 CE).
- (c) **Jurisdictional necessity:** The transfer to Pilate may reflect not bad faith but jurisdictional reality. If the Sanhedrin had lost the *ius gladii* under Roman rule (as John 18:31 claims: “We are not permitted to put anyone to death”), then the transfer was procedurally *required*, not voluntarily chosen.

8.3 SVE Response to the Defence

Each defence argument is integrable into the Bayesian framework, and none is sufficient to override the cumulative evidence:

- (a) *Genuine theological alarm* is consistent with some of the evidence but does not explain the *combination* of all four anomalies. A sincerely alarmed court would be *more* likely to follow procedure meticulously, precisely because the gravity of the charge demands it. The haste and irregularity suggest that the alarm was not about blasphemy per se but about the political consequences of failing to act quickly.
- (b) *Protective pragmatism* is, in SVE terms, a sub-variant of H_P , not of H_R . If the motivation is “preventing Roman military intervention,” then the motivation is political by definition—it concerns the institutional and national consequences of Jesus’s movement, not the theological content of his claims.
- (c) *Jurisdictional necessity* is the strongest defence argument. However, the stoning of Stephen (Acts 7) and the execution of James under Ananus (Josephus, *Ant.* 20.9.1) demonstrate that the Sanhedrin did exercise de facto capital jurisdiction for religious offences, at least in some circumstances. Moreover, even if jurisdictional transfer were procedurally required, the *reformulation of the charge* from blasphemy to sedition (which was entirely voluntary) remains unexplained under H_R . This is the decisive point. If the motivation were purely religious, the transfer to Pilate would have been accompanied by a request to enforce the *religious* verdict (“this man has blasphemed our God; we lack the authority to execute, but the offence is religious”), not by a fabrication of an entirely different *political* charge (“this man claims to be king, threatening Caesar’s sovereignty”). The Sanhedrin did not merely change the *venue*; it changed the *qualification of the crime*. Venue change is procedural necessity; charge reformulation is prosecutorial strategy. The distinction is not subtle, and it is the single most diagnostic act in the entire sequence.

8.4 Corollary: The SVE Correction of the Presumption of Innocence

The preceding analysis rests on the SVE epistemological default: every hypothesis begins in the state UNKNOWN. This default has a far-reaching corollary that deepens the diagnostic of the trial and merits independent exposition.

The classical legal principle of the presumption of innocence states: “A person is not guilty until proven otherwise.” In SVE’s axiomatic framework, this formulation contains a subtle but consequential error. “Not guilty” is itself an *assertion*—a positive epistemic claim that requires evidence just as much as “guilty” does. The only honest initial state is neither “guilty” nor “not guilty” but UNKNOWN: the status of guilt is *undetermined*.

Definition 2 (SVE Corollary 5.1: Corrected Presumption). *Let $G(x)$ denote the proposition “person x is guilty of offence $\mathcal{O}$.” The epistemic states are:*

<i>Formulation</i>	<i>State</i>	<i>Epistemic Status</i>
“Guilty”	$\sigma(G) = \text{TRUE}$	<i>Requires proof</i>
“Not guilty”	$\sigma(G) = \text{FALSE}$	<i>Also requires proof—but is granted gratis</i>
“Status unknown”	$\sigma(G) = \text{UNKNOWN}$	<i>Sole honest default</i>

The distinction is not merely pedantic; it is practically significant. “Not guilty” *permits* the system to act around the person freely (the person is cleared; one may proceed). UNKNOWN *forbids* any decision regarding the person until the status is clarified. This is a *stronger* protection than the presumption of innocence: where “not guilty” opens the door to institutional action by default, UNKNOWN closes it.

It is instructive that three independent epistemic traditions converge on the UNKNOWN default—but one of them stops short:

- (i) **Science** (the null hypothesis): begins at UNKNOWN and transitions only upon sufficient evidence. Honest.
- (ii) **Information theory** (maximum entropy principle): the maximum-entropy prior assigns no information about guilt or innocence, i.e., UNKNOWN. Honest.
- (iii) **Jurisprudence** (presumption of innocence): substitutes “not guilty” for UNKNOWN—an epistemically weaker protection disguised as a stronger one.

Why did jurisprudence stop at “not guilty” rather than arriving at UNKNOWN? The SVE diagnosis is structural: UNKNOWN paralyzes institutional action. A system that must wait for data before acting is slower, more cautious, and less amenable to managerial control than one that begins from “not guilty” and acts freely until evidence of guilt accumulates. The substitution of “not guilty” for UNKNOWN is, in SVE terms, a *systemic accommodation*—the nearest operationally tolerable approximation to the epistemically correct position.

8.4.1 Application to the Trial of Jesus (Corollary 5.1b)

This corollary strengthens the diagnostic of the Sanhedrin proceedings in a precise way. The standard critique of the trial is that the Sanhedrin transitioned from UNKNOWN to “guilty” without sufficient evidence. The corrected critique is deeper: even an *acquittal* (“not guilty”) would have been epistemically unwarranted, because the Sanhedrin lacked the evidential basis to render *any* verdict. The witnesses contradicted each other (Mark 14:56, 59). The only substantive testimony was the defendant’s own declaration—which, as argued in Section 5, constituted a claim of such theological depth that responsible adjudication would require sustained deliberation, not a nocturnal emergency session.

The sole epistemically honest verdict was: “*We cannot determine the status of this claim. The matter is UNKNOWN. We must adjourn and investigate further.*” This is precisely the verdict that was not rendered. Instead, UNKNOWN was converted directly into a death sentence. In SVE terminology, this is not a judicial error but a *categorical crime*: the substitution of ignorance for knowledge, of institutional convenience for epistemic honesty.

$$\sigma(G) : \text{UNKNOWN} \xrightarrow{\text{no data}} \text{TRUE (GUILTY)} \xrightarrow{\text{transfer}} \text{execution}. \quad (10)$$

Each arrow in this chain represents a violation: the first, a violation of epistemic integrity (conviction without evidence); the second, a violation of jurisdictional integrity (transfer to Rome). The High Priests Axiom (Axiom 1) captures the second violation; Corollary 2 captures the first. Together, they constitute a complete diagnostic of the proceedings.

8.4.2 Implication for Pre-Crime Reasoning

A further implication, noted briefly for completeness, concerns the logic of *pre-crime*—the algorithmic prediction of future offences. If the correct epistemic default is UNKNOWN (not “not guilty”), then any system that assigns guilt *before an event has occurred* performs a double violation: it skips not only from UNKNOWN to “guilty” without data, but does so before the data could even in principle exist. Pre-crime is epistemically impossible within SVE’s axiomatics—it exploits precisely the gap that the legal tradition created by substituting “not guilty” for UNKNOWN. If jurisprudence had arrived at UNKNOWN honestly, the conceptual space for pre-crime would not exist even at the level of language.¹³

¹³This observation connects to broader discussions in philosophy of law and AI ethics regarding predictive policing, algorithmic sentencing, and the epistemology of risk assessment. We note it here as an implication of the corrected presumption without pursuing it further, as it exceeds the present paper’s scope.

8.5 The “John’s Baptism v2.0” Trap Structure

We introduce one further structural observation. In Matthew 21:23–27 (and parallels), Jesus employs a logical trap when asked “By what authority do you do these things?” He responds with a counter-question: “The baptism of John—was it from heaven or from men?” The chief priests recognise that either answer is politically catastrophic: “If we say ‘from heaven,’ he will say ‘Then why did you not believe him?’ But if we say ‘from men,’ we fear the crowd, for they all regard John as a prophet.” They answer: “We do not know.”

This *dilemma structure*—where both horns of a question expose institutional bad faith—is what SVE terms a “diagnostic fork.” We observe that the High Priests Axiom generates an analogous diagnostic fork when applied to the question: *On what grounds was Jesus arrested and tried?*

- If the answer is “blasphemy,” then the transfer to Rome is procedurally inexplicable and the charge-translation to sedition is self-incriminating.
- If the answer is “political threat,” then the religious proceedings were a pretext and the charge of blasphemy was instrumentalised.

Either horn leads to the same conclusion: the institutional action was not what it claimed to be.

It is worth noting the structural recursion here: Jesus’s original “John’s Baptism” trap (Matthew 21:23–27) and the SVE-generated “v2.0” trap operate on identical logical architecture. In both cases, an institution is confronted with a binary question where each answer reveals the institution’s actual motivation. In the original, the chief priests evade by saying “we do not know” (*ouk oidamen*). The SVE diagnostic, however, does not permit this evasion: the procedural evidence already recorded in the Synoptic narratives provides the answer that the chief priests declined to give. The procedures speak where the institution remained silent.

8.6 The State-Transition Analysis: What Changed?

The “John’s Baptism” exchange (Matthew 21:23–27) is not merely a rhetorical device; it is a *state declaration*. The chief priests publicly declared their epistemic state regarding the divine authorisation of John’s ministry (and, by implication, of Jesus’s): UNKNOWN (“We do not know”). Between this declaration and the arrest, trial, and execution of Jesus, the institution’s operational state transitioned from UNKNOWN to an effective FALSE (“guilty of blasphemy deserving death”).

The diagnostic question is elementary: *What event, occurring between the declaration of UNKNOWN and the verdict, epistemically justified the transition to FALSE?*

If no such event can be identified, then the transition was *without epistemic basis*—the institution moved from “we do not know” to “death sentence” without acquiring the knowledge that would justify such a move. By the SVE corrected presumption (Definition 2), this constitutes a categorical violation: the conversion of UNKNOWN into a verdict without intervening data.

Moreover, it is insufficient to locate the justification in events *prior* to the UNKNOWN declaration. The chief priests’ own statement retrospectively absorbs all prior evidence: whatever they knew about the Temple cleansing, the Sabbath controversies, or the triumphal entry, their public answer was still “we do not know.” Their declaration resets the epistemic baseline. Any event cited as justification must postdate this reset.

8.7 Systematic Rebuttal of Candidate Justifications

We now examine the principal counter-arguments—events that might be proposed as the epistemic trigger for the transition from UNKNOWN to FALSE—and assess each within the SVE framework.

(1) The Temple Cleansing (Matthew 21:12–13). This event occurs *before* the “we do not know” declaration (Matthew 21:23). If it constituted sufficient grounds for a verdict, the chief priests would have answered “from men” rather than “we do not know.” Their own answer absorbs it.

(2) The Triumphal Entry (Matthew 21:1–11). Similarly antedates the declaration. Already within the chief priests’ epistemic horizon when they said “we do not know.” Absorbed.

(3) Accumulated Controversies (Sabbath, forgiveness of sins, etc.). All predate the declaration. The chief priests’ UNKNOWN state was issued *with full knowledge* of these controversies. They do not constitute new evidence.

(4) Jesus’s “I am” declaration (Mark 14:62). This postdates not only the UNKNOWN declaration but also the arrest. It cannot serve as the justification for the arrest, because it was elicited *by* the trial proceedings. Effect cannot serve as cause.

(5) The Raising of Lazarus (John 11:1–44). Chronologically the strongest candidate. However, its evidential direction is inverted: if Lazarus was raised, this constitutes evidence *for* divine authorisation, not against it. The Johannine account is explicit about the institutional response: “If we let him go on like this, everyone will believe in him” (John 11:48). The chief priests feared not that Jesus was wrong but that he was *right*—and that his rightness threatened the institutional order. Fear of an opponent’s correctness is a political datum, not an epistemic one. By SVE axiomatics, political fear does not justify a transition from UNKNOWN to FALSE.

(6) Political Necessity—the Caiaphas Calculus (John 11:50). Caiaphas’s statement (“it is better that one man die for the people”) is a utilitarian calculation, not an

epistemic judgement. It confirms H_P (political motivation), not H_R (religious conviction). This counter-argument, upon analysis, *strengthens* the diagnostic rather than weakening it (see Section 8.10 below).

(7) The Parable of the Wicked Tenants (Matthew 21:33–46). Told during the same exchange as the “we do not know” declaration. The chief priests “perceived that he was speaking about them” (v. 45). The parable constitutes an institutional threat, but a threat is a *political* datum—a motive for political action, not an epistemic basis for the theological judgement “this man is a false prophet.”

(8) Deuteronomy 13:1–3 (the False Prophet provision). The most theologically sophisticated counter-argument: even a miracle-worker must be rejected if he leads the people “after other gods.” However, the condition is not satisfied: Jesus consistently invoked the God of Israel, cited Torah, and explicitly stated “Do not think that I have come to abolish the Law” (Matthew 5:17). The Deuteronomic test requires deviation from the God of Israel; Jesus claimed continuity with that God, not deviation from Him.

(9) “We do not know” was a tactical evasion, not a sincere state. This is the strongest counter-argument. Matthew 21:25–26 reveals the chief priests’ deliberation: they calculated the political consequences of each answer. Their “we do not know” may have been strategically chosen to avoid both horns, while their actual internal state was already FALSE.

This objection, however, strengthens rather than weakens the diagnostic. If the chief priests were already at FALSE when they said “we do not know,” then on what basis was that prior FALSE grounded? The SVE axiomatics apply to the hidden state just as rigorously: wherever FALSE is located, it requires justification. The question simply recurses to a deeper level. Moreover, if “we do not know” was a strategic lie, a further anomaly emerges: the institution demanded truthful answers from Jesus (Mark 14:61: “I adjure you by the living God, tell us”) while itself having lied under the same epistemic obligations. An institution that reserves the right to interrogate but refuses to be interrogated—that demands transparency from its subject while practising opacity itself—is, in SVE terms, not a truth-seeking body but a frame-operator: one that controls the conditions of discourse without being subject to them. A judge who lies in court delegitimises the court itself.

(10) The Asymmetry of Risk. A final observation cuts across all counter-arguments. Jesus posed his question publicly, knowing that any answer could be used against him—he accepted the risk. The chief priests refused to answer because any response carried risk for them. Willingness to expose one’s position to public scrutiny is a *marker of epistemic honesty*; refusal signals that the position would not survive scrutiny. This asymmetry is itself Bayesian data.

Counter-Argument	Chronology	SVE Assessment
Temple Cleansing	Before	Absorbed by “we do not know”
Triumphal Entry	Before	Absorbed
Sabbath controversies	Before	Absorbed
“I am” (Mk 14:62)	After arrest	Effect $\neq$ cause
Raising of Lazarus	Ambiguous	Fear of correctness $\neq$ knowledge of error
Caiaphas calculus	—	Confirms H_P , not H_R
Parable of Tenants	Same episode	Threat $\neq$ epistemic basis
Deut. 13 (false prophet)	—	Condition not satisfied
Tactical “we do not know”	At declaration	Regress: hidden FALSE also requires basis

No counter-argument identifies an event between the UNKNOWN declaration and the verdict that epistemically justifies the transition. The most historically plausible candidates (Lazarus, Caiaphas’s calculus) confirm the political-motivation hypothesis upon analysis. The most theologically sophisticated (Deuteronomy 13) fails on its own terms. The strongest logical objection (tactical evasion) generates an infinite regress that reinforces the diagnostic at every level.

8.7.1 The Gamaliel Precedent: The SVE-Correct Response Within the Tradition

A remarkable datum, often overlooked in discussions of the trial, is that the SVE-correct response to the diagnostic dilemma was actually articulated *within the Jewish legal tradition itself*, shortly after the crucifixion. In Acts 5:38–39, the Pharisee Gamaliel—a member of the Sanhedrin—counsels regarding the early Christian movement: “If this plan or this undertaking is of human origin, it will fail; but if it is of God, you will not be able to overthrow them.” This is, in SVE terms, a pure Bayesian recommendation: maintain the state UNKNOWN, allow the data to accumulate, and let the outcome determine the truth-value. It is the epistemically honest alternative to the Caiaphas strategy—and it was rejected.

The Gamaliel precedent demonstrates that the conceptual resources for the correct response were available within the tradition. The failure to apply them to the case of Jesus is therefore not a failure of conceptual vocabulary but a failure of institutional will—further evidence that the motivation was political urgency, not theological judgement.

8.8 A Contemporary Dimension: The Fork Applied

This diagnostic fork has a contemporary dimension that deserves careful and respectful articulation. Modern Jewish scholarship and inter-religious dialogue rightly reject the anti-Semitic instrumentalisation of the Passion narratives. The present analysis fully endorses this rejection: SVE diagnoses *institutional procedures*, not ethnic or religious identities, and the High Priests Axiom attributes no guilt to any people.

Nonetheless, the diagnostic fork poses a question to any scholarly tradition that engages with Second Temple history: *On what grounds was Jesus arrested and tried?* The question is not polemical; it is diagnostic. Any historically serious answer must navigate the same fork:

- (a) If the grounds were religious (blasphemy), then the procedural anomalies demand explanation: Why was internal jurisdiction abandoned? Why was the charge reformulated for Roman ears? Why the haste?
- (b) If the grounds were political, then the use of the blasphemy charge as a prosecutorial instrument must be acknowledged, with all its implications for the integrity of the proceedings.

The SVE framework does not prescribe which horn scholars must choose; it simply demonstrates that both horns converge on the same diagnostic conclusion regarding institutional motivation. This convergence is a structural property of the evidence, not a rhetorical strategy of the analyst.

8.9 Structural Consistency: Trial Testimony and Teaching

A brief observation relevant to the diagnostic: Jesus’s composite citation at the trial (Daniel 7:13 + Psalm 110:1) constitutes an identity claim of the highest order. If this claim were an improvisation under duress, its evidential weight would be diminished. However, a structural comparison with Jesus’s core teaching—particularly the Lord’s Prayer (*Pater hēmōn*, Matthew 6:9–13)—reveals a consistent triadic structure: a Father addressed in heaven (the “Ancient of Days”), a Son who mediates the address (the “Son of Man” who teaches the prayer), and a community constituted by the shared address (*hēmōn*, “our”). The trial testimony and the paradigmatic prayer exhibit the same relational architecture.¹⁴

For SVE purposes, the diagnostic implication is narrow: if the identity claim is structurally consistent across Jesus’s teaching and his trial testimony, then it is not an ad

¹⁴The compressed phrase “Our Father Jesus” (*Pater hēmōn Iēsous*)—read without commas—encodes this triadic structure in miniature: Father (*Pater*), communal indwelling (*hēmōn*), Son (Jesus). Whether this encoding is linguistically intentional, theologically emergent, or coincidental is a question for Christological investigation, not for the present diagnostic. We note it as a structural observation for future study.

hoc response to interrogation but the expression of a sustained self-understanding. This consistency increases the prior probability that the claim was sincerely held (on Jesus’s part), which in turn increases the evidential weight of the Sanhedrin’s failure to engage with it through genuine theological deliberation.

8.10 The First Trolley Problem: Caiaphas and the Forbidden Fruit of Utilitarianism

The Caiaphas calculus (John 11:50)—“it is better for you that one man die for the people than that the whole nation perish”—has been treated above as evidence for H_P . But it merits deeper analysis, for it may represent one of the earliest recorded formulations of what contemporary ethics calls the “Trolley Problem”: one person on one track, a nation on the other, and someone claims the authority to switch the lever.

The SVE framework, following Kovnatsky (2025a), classifies the Trolley Problem as a “Forbidden Fruit”—an intellectual trap whose danger lies not in the answer but in the act of engaging with the premise. The reasoning is as follows. If human value is transfinite (as SVE’s Axiom 0 posits, following the Kantian principle that persons are ends in themselves, not means), then $1 \times \aleph_\alpha = \aleph_\alpha = n \times \aleph_\alpha$: no finite multiplier changes the cardinality. The utilitarian “trade-off” between one life and many is an arithmetic operation performed on a quantity that does not admit arithmetic. It is not that the answer is unknown; it is that the calculation is *categorically inapplicable*.¹⁵

The moment one accepts the premise “one life *may* be exchanged for many,” one has performed an implicit operation: converting a transfinite value ($\aleph_\alpha$) into a finite number amenable to comparison. This conversion is irreversible at the level of institutional logic. Once the precedent is established that utilitarian arithmetic may be applied to human lives, the framework becomes available for all subsequent applications: “collateral damage,” “the lesser evil,” strategic sacrifice. Caiaphas did not merely “solve” a trolley problem; he may have *inaugurated the category* as a legitimate mode of institutional reasoning.

In SVE terms, there are only two responses to the Trolley Problem that introduce no new perturbation into the system (Kovnatsky, 2025a):

- (i) **Refusal of jurisdiction:** The recognition that the decision exceeds human competence. One does not switch the lever—not from indifference, but from the acknowledgement that one lacks the epistemic standing to perform a transfinite calculation. This is the Gödelian response: a proposition undecidable within the system is not an error but a boundary.

¹⁵This is not a novel observation in ethical theory; Kant’s prohibition on treating persons as mere means, and Levinas’s infinite obligation to the Other, arrive at similar conclusions from different starting points. The SVE contribution is the formal expression in terms of transfinite cardinality and the classification as a “Forbidden Fruit”—a problem whose very engagement constitutes a violation.

- (ii) **Self-sacrifice:** The only agent who can “pay” a transfinite cost is the one who pays with their own life, not another’s. This is precisely what the Christian narrative attributes to Jesus and precisely what the chief priests did not do. They paid with *someone else’s* life and declared it a public good.

The asymmetry is categorical, not quantitative: Jesus accepted death rather than impose it; the chief priests imposed death rather than accept risk. From the perspective of SVE’s geodesic ethics, these two actions lie on opposite trajectories through the ethical manifold.

8.11 Bayesian Silence as Data

A final evidential consideration concerns what has *not* been said. The diagnostic fork of Section 8.5 poses a specific, answerable question: *What event between the declaration of UNKNOWN and the verdict justified the transition to FALSE?* This question has been available for two millennia. It has been posed, in various forms, by scholars of every tradition. No answer that survives the chronological and logical analysis of Section 8.7 has been produced.

It is worth noting that the chief priests had the full right—indeed, by the *lex talionis* principle (“an eye for an eye,” Exodus 21:24), the *obligation*—to respond to Jesus’s public question with a public answer. He posed his question openly, before witnesses. Even the strictest reading of Torah granted the institutional authorities the right to answer Word with Word: to articulate their “No,” to name the evidence, to produce the counter-argument. They did not. The silence was not for lack of opportunity but for lack of content.

SVE treats institutional silence in the face of a specific diagnostic question as Bayesian data. The principle is:

Proposition 2 (Bayesian Silence). *The absence of an answer from an institution possessing the resources, expertise, and motivation to provide one, to a question within its domain of competence, constitutes a Bayesian update in favour of the hypothesis that no answer exists.*

The likelihood of prolonged silence given that a valid answer exists is low; the likelihood of prolonged silence given that no valid answer exists is high. The ratio favours the latter. The longer the silence endures—and in this case it has endured for approximately two thousand years, across a tradition of extraordinary theological sophistication—the stronger the update.

We note this not as a triumphalist observation but as a diagnostic datum. The question remains open, and a compelling answer would constitute a genuine counter-example to

the High Priests Axiom. Its absence is data; its future provision would also be data. SVE is agnostic about which datum will ultimately arrive.

It is worth recalling that the Hebrew prophetic tradition itself provides a well-documented pattern: institutional rejection of prophetic figures (Jeremiah, Elijah, Amos) who were subsequently vindicated by the tradition that persecuted them. The execution of a prophetic figure for prophetic speech is a pattern that Judaism’s own historiography recognises as institutional error. This does not prove that Jesus was a prophet; it establishes that the *category* of “institutional error in condemning a prophet” is native to the tradition, not foreign to it.

8.12 A Remark on Formal Incompleteness

We add a brief metamathematical observation. Gödel’s First Incompleteness Theorem (1931) establishes that in any consistent formal system sufficiently rich to encode arithmetic, there exist true propositions that cannot be proved within the system. The theological parallel is suggestive: Jesus’s claim (“I and the Father are one,” John 10:30; the composite Daniel 7:13 / Psalm 110:1 declaration) may be understood as a *meta-level assertion*—a proposition about the relationship between the formal system (Torah, halakhah) and a reality that transcends it. If so, the Sanhedrin’s attempt to adjudicate this claim *within* the formal system of Jewish law faces a structural impossibility: the claim, if it refers to a meta-level truth, is by construction *undecidable* within the system.

Gödel’s theorem does not tell us whether the claim is true; it tells us that the system lacks the resources to determine its truth-value. The epistemically honest response to an undecidable proposition is UNKNOWN—not FALSE. The Sanhedrin’s verdict of TRUE (GUILTY) for a claim that may be formally undecidable within its own juridical system represents, on this reading, not merely a procedural violation but a *metamathematical* one: the assertion of decidability where Gödel demonstrates undecidability.¹⁶

This observation is speculative and is offered as a structural analogy rather than a formal proof. Its value lies in framing the trial’s deepest anomaly: an institution attempting to render a *finite* verdict on a claim that may, by its very nature, exceed the system’s adjudicative capacity.

8.13 Author’s Testimony and Epistemic Positioning

SVE requires transparency about the analyst’s own epistemic position. The author approaches this material as a researcher within the SVE framework, not as a confessional

¹⁶Gödel himself was a theist who developed a formal ontological proof for the existence of God (published posthumously, 1970). The man who proved the incompleteness of formal systems arrived, by his own account, at the necessity of a “meta-level”—not only mathematically but existentially. For a recent formal treatment of decidability questions in theology, see [Olszewski \(2021\)](#). On the use of modal logic to formalise theological propositions, see [Hartshorne \(1962\)](#).

theologian or an anti-religious polemicist. The author’s working hypothesis is that SVE, as a formal method, should be applicable to any historical case of contested institutional motivation, and that the trial of Jesus is a paradigmatic test case because of the depth of available sources, the intensity of scholarly debate, and the theological weight of the subject matter. The present analysis is offered as a contribution to analytic theology—a discipline that values formal precision, logical transparency, and the willingness to subject one’s arguments to rigorous counter-examination.¹⁷

The author does not claim expertise in biblical scholarship, Mishnaic law, or historical-critical methodology. What the author brings is a *tool*—the SVE diagnostic protocol—and a demonstration of its application. Domain experts are invited to correct errors of historical fact, refine the likelihood ratios, and extend the analysis where the author’s knowledge is insufficient. The tool is designed to be improved by those who use it.

8.14 Avenues Not Yet Explored

Several lines of inquiry, though relevant, fall outside the scope of this paper but merit identification for future investigation:

- (i) **The role of Judas:** The financial arrangement (“thirty pieces of silver,” Matthew 26:15) and its connection to Zechariah 11:12–13 raises questions about whether Judas’s betrayal was instrumentalised by the priestly establishment—a question that SVE’s “informant protocol” analysis could address. The precise information Judas provided (location? identity? or something more substantive about Jesus’s private teachings?) remains debated (Brown, 1994), and its characterisation affects the assessment of institutional premeditation.

¹⁷The author notes an instructive parallel from personal experience. In conversation with a senior theologian, the author used the phrase “Our Father Jesus” (*Otche Nash Iisus*) without commas—intending it as a compressed trinitarian formula (Father–Spirit–Son). The theologian immediately corrected this as a theological error, interpreting it as a conflation of persons. The author’s intended meaning, however, was precisely the *opposite*: that the phrase, read without punctuation, encodes the unity of essence while distinguishing the three relational modes (Father = *Otche*, communal Spirit = *Nash*, Son = *Iisus*). This micro-incident illustrates the broader methodological point: when a speaker operates within a novel ontological framework, judging that framework by the conventions of an existing one is a category error—the same category error, arguably, that the Sanhedrin committed when it judged Jesus’s eschatological self-designation by the procedural categories of established halakhah, without asking clarifying questions. A further example from the same conversation: the theologian asked “Who is Joseph?”—meaning the patriarch, son of Jacob, sold into slavery in Egypt (Genesis 37). The author, operating within the context of the present research, thought of Joseph of Arimathea. Even an AI system, when presented with the question in the context of this paper, defaults to the Sanhedrin member rather than the patriarch. The single word “Joseph” carries entirely different referents depending on the listener’s active ontological frame—and without a clarifying question (“Which Joseph?”), the divergence is invisible to both parties. This is precisely the SVE point: language is an interface, not a transparent window; the default state for the *meaning* of any utterance is UNKNOWN until the speaker’s referential frame is established. A specialist’s deep expertise in the existing framework does not automatically confer competence to adjudicate claims made from outside it. SVE does not claim that the author’s framework is superior to the theologian’s; it claims that the *ruler*—the diagnostic protocol—is independent of both, and that is the contribution. See Appendix A for further epistemic disclosure.

- (ii) **The Herod Antipas episode** (Luke 23:6–12): Pilate’s transfer of Jesus to Herod and the subsequent “friendship” between Pilate and Herod suggest a political coordination that deserves separate SVE diagnostic treatment. The fact that Herod returned Jesus to Pilate without verdict is itself a diagnostic datum: even a sympathetic political authority found insufficient grounds for the charge.
- (iii) **Comparative application:** The axiom’s applicability to other historical cases (e.g., the trials of Socrates, Joan of Arc, Galileo, the Inquisition’s treatment of Copernicus) could test its generalisability. In each case, the diagnostic question is identical: did the institution act within its own jurisdiction using its own procedures, or did it improvise, externalize, or reformulate in ways that reveal a motivation other than the stated one?
- (iv) **The Temple Veil:** The Synoptic report of the Temple veil being torn at the moment of Jesus’s death (Mark 15:38) has possible connections to the SVE framework’s concept of “institutional revelation”—the moment when a system’s hidden structure becomes visible.
- (v) **Nicodemus:** John 3:1–21 and 7:50–52 present another Sanhedrin member who shows sympathy toward Jesus, providing a second internal dissent data point that, combined with Joseph’s, suggests a pattern of suppressed deliberation within the institution.
- (vi) **The “Sabbath for Man” principle:** Jesus’s statement that “the Sabbath was made for man, not man for the Sabbath” (Mark 2:27) articulates a meta-principle about the relationship between institutions and the persons they serve. SVE’s diagnostic of the trial suggests that this principle was violated by the very institution charged with preserving it: the Sanhedrin’s procedures were not deployed in service of justice (“man”) but in service of institutional self-preservation (“the Sabbath”).
- (vii) **Pilate’s wife:** Matthew 27:19 records that Pilate’s wife sent him a message: “Have nothing to do with that righteous man, for I have suffered much because of him today in a dream.” This detail, unique to Matthew and often dismissed as legendary, is diagnostically interesting: it introduces an external, non-institutional voice that counterbalances the institutional pressure. In SVE terms, it is an example of “signal from outside the system” that the system’s operator (Pilate) acknowledges but overrides under institutional pressure.

8.15 Toward a Research Programme

The High Priests Axiom is not confined to the trial of Jesus. Its formal structure (Axiom 1) identifies a general pattern: when an institution possessing internal jurisdiction over a

category of offence transfers the case to an external authority under a different category, the transfer is a diagnostic marker of mismatch between stated and actual motivation. This generates a natural research programme—the systematic application of the axiom to analogous historical cases:

- **The trial of Socrates (399 BCE):** Charged with “impiety” (*asebeia*) and “corrupting the youth”—religious and educational offences—but executed by the democratic *polis* under political pressure. Did the Athenian court’s procedural behaviour reveal political threat perception rather than sincere religious concern?
- **The trial of Joan of Arc (1431):** Charged with heresy by a church tribunal but executed by English political authorities. The jurisdictional transfer and charge reformulation follow the axiom’s pattern precisely.
- **The Galileo affair (1633):** Charged with heresy for heliocentrism but subjected to procedures inconsistent with the Church’s own standards for doctrinal adjudication. Did the institutional response reveal a threat to ecclesiastical authority rather than a sincere theological objection?

Each case would require its own careful historical analysis, and the axiom’s applicability cannot be assumed in advance. But the formal structure provides a common diagnostic lens—and if the pattern replicates across cases, the axiom’s status shifts from a historical observation about first-century Jerusalem to a general principle of institutional epistemology.

9 Conclusion

We have applied Systemic Verification Engineering to the trial and execution of Jesus of Nazareth, yielding the following results:

- (i) The hypothesis that the High Priests’ primary motivation was sincere religious conviction (H_R) was assigned the initial state UNKNOWN, with maximally charitable priors.
- (ii) Four procedural anomalies—the nocturnal Passover-eve session, the instability of charges, the transfer to Roman authority with charge-reformulation, and the manipulation of the crowd—were identified and assessed as Bayesian evidence.
- (iii) The cumulative Bayes factor exceeds 2,500 : 1 against H_R , triggering an irreversible state transition: $\sigma(H_R) : \text{UNKNOWN} \rightarrow \text{FALSE}$.

- (iv) The principle underlying this transition was formalised as the High Priests Axiom (Axiom 1): when a religious institution bypasses its own jurisdiction to appeal to a foreign political authority, this procedural transfer is a formal marker of political, not religious, threat perception.
- (v) The composite Daniel 7:13 / Psalm 110:1 citation was analysed as the theological trigger that forced the institutional hand, and Caiaphas’s procedural shortcut (“Why do we still need witnesses?”) was identified as consistent with political urgency rather than religious deliberation.
- (vi) Joseph of Arimathea’s dissent was identified as an internal falsification event confirming the non-unanimity and procedural irregularity of the verdict.
- (vii) The SVE correction of the presumption of innocence (Corollary 2) reveals that the proceedings suffer from a deeper defect than wrongful conviction: the Sanhedrin rendered a verdict (TRUE, guilty) where the only epistemically honest state was UNKNOWN. This converts the trial from a judicial error into a categorical violation—the substitution of ignorance for knowledge under institutional pressure.
- (viii) A systematic examination of ten candidate justifications for the transition from UNKNOWN to FALSE (Section 8.7) found that none survives chronological and logical scrutiny. Events prior to the chief priests’ declaration of UNKNOWN are absorbed by that declaration; events after the arrest cannot justify it; and the strongest counter-argument (tactical evasion) generates an infinite regress that reinforces the diagnostic at each level.
- (ix) Caiaphas’s utilitarian calculus (John 11:50) was identified as a possible inaugural instance of “Trolley Problem” reasoning applied to human life—a category error when human value is modelled as transfinite (Section 8.10).
- (x) The prolonged absence of an answer to the diagnostic question “What changed between UNKNOWN and the verdict?” was identified as Bayesian data in its own right (Section 8.11).

The contribution of this paper is methodological, not theological. We propose no new doctrine about who Jesus was or what his death means. What we propose is a *formally auditable diagnostic protocol* that extracts a definitive conclusion about institutional motivation from publicly available procedural evidence. The protocol is transparent, inspectable, and falsifiable: any scholar who can identify a procedural fact inconsistent with the diagnosis, or who can demonstrate that one of the likelihood ratios is mis-specified, is invited to do so.

In this sense, the High Priests Axiom is not an argument from authority or from faith. It is an argument from procedure—and procedures, unlike intentions, leave traces.

To close with a Socratic formulation: we do not claim to know the full truth of what happened in Jerusalem on that Passover eve. What we claim to know is what *did not* happen—and what did not happen is a sincere religious trial conducted in good faith by an institution acting within its own jurisdiction for its own stated reasons. The procedures themselves testify otherwise. And the corrected epistemology tells us something more: the honest verdict—the one the Sanhedrin owed to its own legal tradition, to the defendant, and to truth—was the one word it refused to speak: *we do not know*.

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A Author’s Testimony: Epistemic Positioning and Experiential Data

SVE requires transparency about the analyst’s epistemic position, including experiential data that may have shaped the analysis. This appendix provides such transparency. It is not part of the formal argument and should not be evaluated as such; it is offered as a Bayesian prior—a declaration of the analyst’s starting conditions, subject to the same scrutiny as any other datum.

Background

The author is of mixed Russian, Ukrainian, Belarusian, Jewish, and Turkish heritage—representing the three Abrahamic traditions. He holds Israeli and German citizenship, spent ten years in Israel, and has family members who were shot in the local Babi Yar of Berislav; his grandfather and great-uncle received compensation from the German government as children of Holocaust victims. He does not consider any ethnic or religious group superior to any other (SVE Axiom 0).

Experiential Hypotheses

The author reports personal experiences of a spiritual or mystical nature that, while not constituting public evidence, have informed the direction of this research. In accordance with SVE’s own axiomatics, these are presented as *Bayesian hypotheses*—personal observations triangulated with existing scriptures, traditions, and cross-cultural practices, assigned the status UNKNOWN until independently verifiable:

- (i) The existence of a transcendent creative intelligence (“God”) is experientially supported; no logical contradictions were found with the teachings attributed to Jesus.
- (ii) The existence of adversarial spiritual forces is experientially supported; these appear to operate through mimicry, parasitism, and interference with collective consciousness—phenomena that SVE models as “metaphysical cyberwarfare” in the companion papers ([Kovnatsky, 2025b](#)).
- (iii) The criterion of discernment is consistent with Jesus’s own: “By their fruits you shall know them” (Matthew 7:16). The operational metric is not doctrinal conformity but the presence or absence of genuine joy, creative flourishing, and the synergistic co-creation formalised in SVE as $1 + 1 > 2$.

These hypotheses are offered for what they are: the testimony of an individual researcher, filtered through the SVE framework’s insistence on falsifiability, epistemic humility, and the UNKNOWN default. They are not arguments; they are data points from a

sample of one, submitted to the community of inquiry for whatever Bayesian weight they may bear.

“Judge not, that you be not judged.” — Matthew 7:1

“I know that I know nothing.” — Socrates

Possibly, with God.